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Legal Argument and Small-Scale Organization by Scott Fruehwald

Legal argument and legal writing are inseparable.¹ Legal writing is not just a translation of a legal analysis, but the analysis itself. Consequently, legal writing teachers need to be aware of the relationship of the types of legal argument and legal writing when teaching first-year students. This is especially important when teaching small-scale organization of the argument or discussion section. The small-scale paradigm should reflect the types of legal argument that the writer is using.

There are four major types of legal argument: 1) rule-based reasoning, 2) reasoning by analogy, 3) distinguishing precedent, and 4) policy-based reasoning. With rule-based reasoning, one takes a rule and applies it to a set of facts. Richard Neumann has stated that rules have at least three parts: “(1) a set of elements, collectively called a test; (2) a result that occurs when all the elements are present (and the test is thus satisfied); and (3) . . . a causal term that determines whether the result is mandatory, prohibitory, discretionary, or declaratory.”² In addition, some rules have “one or more exceptions that, if present would defeat the result, even if all the elements are present.”³ An example of a rule would be that intentional infliction of emotional harm occurs if 1) the defendant’s conduct is outrageous, 2) the defendant’s conduct is intentional, 3) the defendant’s conduct causes, 4) severe emotional distress. The rule would be satisfied if the facts of the present case satisfies all the elements of the rule. For example, if an ex-boyfriend calls an ex-girlfriend several times in the middle of the night to harass her and this causes her severe emotional distress, intentional infliction of emotional distress has taken place.

Reasoning by analogy occurs when one argues that the facts of the precedent case are like the facts of the present case so that the rule of the precedent case should apply to the present

case. An example of reasoning by analogy is that the rule that one who keeps a wild animal, like a tiger, on her property is strictly liable for any damage caused by that animal also applies to pit bulls because a pit bull, although not a wild animal, is inherently dangerous just like a wild animal. The two cases are never exact; reasoning by analogy is a question of degree. The writer must convince the reader that the facts of the two cases are similar enough that the rule from the precedent case should apply to the present case.

Distinguishing cases is the opposite of reasoning by analogy. In distinguishing cases, one argues that the facts of the precedent case are not like the facts of the present case so that the rule from the precedent case does not apply to the present case. For example, a toy poodle is not like a wild animal because toy poodles are not inherently dangerous so that the rule from the wild animal cases that an owner of a wild animal should be strictly liable for any damage caused by that wild animal should not apply to toy poodles.

Finally, with policy based-reasoning, the writer argues that applying a particular rule to a case would create a precedent that is good for society. For instance, in early products liability cases, lawyers argued for strict liability when a product injured a consumer because manufacturers could better spread the cost of injuries than consumers. Policy-based reasoning can also be combined with reasoning by analogy. For instance, one can argue that the policy behind the rule in the precedent case also applies to the present case so the rule in the precedent case should also apply to the present case.

All four types of legal analysis are important for a convincing legal analysis. Wilson Huhn has noted, “logical reasoning inevitably attempts to meld the oft-conflicting strictures of logical rigor and moral justice.”⁴ However, of the four, rule-based reasoning is the most

important, and it should be the framework for a legal analysis. Nevertheless, reasoning by analogy is what is usually meant by legal reasoning.⁵ Reasoning by analogy is weaker than rule-based reasoning because, as noted above, reasoning by analogy involves questions of degree.⁶ The facts of our case are like the facts of the precedent case, but how close do the facts of our case have to be to the facts of the precedent case to justify applying the rule of the precedent case to our case? There is no clear answer to this question. Therefore, reasoning by analogy should support rule-based reasoning, rather than being the principal type of legal argument. As Professor Garner has noted, “an analogy is a way of defending a premise of a syllogism [rule-based reasoning]; by itself, it is not an argument but merely a small piece of an argument.”⁷

Another problem with relying mainly on reasoning by analogy is that it avoids synthesis of the law. Every legal writing professor receives several papers a year in which a student discusses case A, then compares case A to the present facts, discusses case B and compares it to the present facts, etc., without bringing everything together. This is unconvincing because the reader sees only pieces of the law, not the whole law. When one synthesizes the rule from all the legal materials and applies the rule to the facts then backs this up with case comparisons, the analysis is much more convincing.

The reason that our students rely so much on case comparisons is the emphasis in first year doctrinal courses on the case method. Professor Levi in his influential book on legal reasoning has described legal reasoning as:

The basic pattern of legal reasoning is reasoning by example. It is reasoning from case to case. It is a three-step process described by the doctrine of precedent in which a doctrine of precedent of the first case is made into the rule of law and then applied to a next similar situation. The steps are these: similarity is seen between cases; next the rule of law inherent in the first case is announced; then the rule of law is made applicable to the second case. . . . The finding of

similarity or difference is the key step in the legal process.⁸

This approach to legal reasoning is the predominant approach in first-year doctrinal classes.

While it does describe a significant chunk of what should be taught; it is incomplete. Other types of legal reasoning need to be taught in first-year doctrinal classes.⁹

Because legal writing professors teach a different type of class, one that requires practical application of legal argument skills, a variety of legal reasoning approaches are taught in legal writing courses. For examples, most legal writing texts include a chapter on statutory analysis, a type of rule-based reasoning.¹⁰ Similarly, many legal texts have sections on synthesizing legal materials.¹¹ Finally, some texts include sections on legal argument.¹²

Another way to teach students different types of legal argument and how to incorporate them in their writing is to develop a small-scale organizational paradigm that uses the different types of legal arguments. By small-scale organizational paradigm, I mean the basic unit of organization for argument and discussion sections. An argument section should be organized on the large- and medium-scale levels by breaking the legal rule into parts and subparts. When the rule cannot be broken down further, the writer should use the small-scale paradigm to organization the sections and subsections.

My small-scale paradigm, which uses the four types of legal argument, is as follows:¹³

Conclusion

Law: Rule

Rule Explanation

Rule Illustration(s)

Application: Apply the Principles

Case Comparison(s)

I begin with a one-sentence conclusion for clarity. The reader needs to know at the beginning what the conclusion of the argument is. For example, a conclusion might be “the

defendant established minimum contacts with Alabama because it was foreseeable that he would be sued in Alabama since he caused injury to an Alabama resident in Alabama.” The rest of the small-scale paradigm then backs up that conclusion with the four types of legal argument.

The law section should begin with a clear statement of the rule (usually one sentence). This is important for clarity. In addition since, as discussed above, rule-based reasoning is the most important type of legal reasoning, the law section should start with the rule. The writer must synthesize the rule from all the relevant cases and other legal material, unless a case has already done the synthesize. Even if a case has already done the synthesis, the writer must ascertain that later cases have not changed the rule.

The rule explanation explains the rule, expands on the rule, and gives the policy behind the rule. This is a very important section because the meaning of the rule will usually not be clear from just the statement of the rule. For example, assume the rule for this subsection is that “to establish minimum contacts with a state, it must be foreseeable that the defendant will be sued in that state.” What does foreseeability mean? The writer must help the reader understand the rule by taking material from a variety of cases. In other words, the rule explanation is an important part of the synthesis. The rule explanation is also important because it can discuss the policy behind the rule.

A rule illustration uses one or more cases to show how the rule works in a factual context, and it helps set up the case comparison(s) in the application. The case or cases for the rule illustration should usually be as close as possible to the facts of the main case. In the first sentence of the rule illustration, the writer should tell the reader why the case is being cited. In other words, the writer should start with the holding, focusing on the subtopic of the section.

Then, the writer should give the facts and reasoning of the case, again, focusing on the topic of the subsection. The writer should leave out anything that is irrelevant. Whether the writer uses one rule illustration or two or three depends on the complexity of the subissue and how good the cases are. However, having at least two rule illustrations allows for both reasoning by analogy and distinguishing cases.

After having fully presented the law, the writer should apply the law to the facts in detail. In other words, the writer should show how the facts fit into the above law. The writer should start by applying the principles and save the case comparisons for last. The purpose of case comparisons is to strengthen the analysis, not substitute for the analysis.

The above small-scale paradigm uses all four types of legal argument. The framework for the paradigm is rule-based reasoning. It presents the rule and explains the rule, then applies the rule in detail in the first half of the application section. The rule illustration section and the case comparison portion of the application section supply reasoning by analogy and distinguishing cases. It comes after the rule and rule explanation and the application of principles because its purpose is to reinforce the rule-based reasoning. Finally, policy can be placed in the rule explanation and the rule illustrations then applied in the application of principles part and the case comparison part of the application section. It also reinforces the rule-based reasoning arguments.

As noted briefly above, the small-scale paradigm provides a true synthesis of the law. The rule is synthesized from all relevant cases. The rule explanation is also a synthesis of all relevant cases. The first part of the application then applies the synthesized law to the facts. Thus, the paradigm does more than do case comparisons (it gives more than pieces of the law), it

provides all the law with the case comparisons providing the most relevant highlights.

In conclusion, while first-year doctrinal courses often provide incomplete instruction in some types of legal argument, a well-designed small-scale paradigm can help legal writing students employ all types of legal argument. While this author's small-scale paradigm is not the only way to do this, it incorporates all four types of legal argument—rule-based reasoning, reasoning by analogy, distinguishing cases, and policy-based reasoning, while emphasizing the most important type of legal argument—rule-based reasoning.

1. As Professors Rideout and Ramsfield have stated, “the act of writing is intimately involved with the act of construing the law—describing and synthesizing the applicable law, applying legal rules, drawing analogies and distinguishing facts, and developing legal arguments. J. Christopher Rideout & Jill J. Ramsfield, *Legal Writing: A Revised View*, 69 WASH. L. REV. 35, 55 (1994).
2. RICHARD K. NEUMANN, JR., *LEGAL REASONING AND LEGAL WRITING: STRUCTURE, STRATEGY, AND STYLE* 16 (5th ed. 2005).
3. *Id.*
4. Wilson Huhn, *The Stages of Legal Reasoning: Formalism, Analogy, and Realism*, 48 VILL. L. REV. 305, 307 (2003).
5. JAMES A. GARDNER, *LEGAL ARGUMENT: THE STRUCTURE AND LANGUAGE OF EFFECTIVE ADVOCACY* 10 (1998).
6. Wilson Huhn has pointed out that “[w]hile formalism is scientific and grounded in logic, analogical reasoning is an art that is grounded in rhetoric.” Huhn, *supra* note 4, at 312.
7. GARDNER, *supra* note 5, at 11.
8. EDWARD H. LEVI, *AN INTRODUCTION TO LEGAL REASONING* 1-2 (1949).
9. As Nancy Schultz has stated: “The limited focus of most law school classes on derivation of rules and policy considerations from appellate decisions cannot begin to approximate the thinking process of the competent attorney. Teaching students to think like attorneys loses much of its meaning if that thinking is not placed in the context of what lawyers actually do.” Nancy L. Schultz, *How Do Lawyers Really Think?* 42 J. LEG. EDUC. 57, 64 (1992).
10. *E.g.*, NEUMANN, *supra* note 2, at 183-204; HELENE S. SHAPO, MARILYN R. WALTER, & ELIZABETH FAJANS, *WRITING AND ANALYSIS IN THE LAW* 65-88 (Rev. 4th ed. 2003); LINDA EDWARDS, *LEGAL WRITING AND ANALYSIS* 45-53 (2003); BRADLEY G. CLARY & PAMELA LYSART, *SUCCESSFUL LEGAL ANALYSIS AND WRITING: THE FUNDAMENTALS* 70-81 (2003).
11. *E.g.*, NEUMANN, *supra* note 2, at 167-68; SHAPO ET. AL., *supra* note 10, at 57-64; EDWARDS, *supra* note 10, at 36-43; CLARY & LYSAGHT, *supra* note 10, at 49-62.
12. *E.g.*, SHAPO ET. AL., *supra* note 10, at 225-52; EDWARDS, *supra* note 10, at 55-62.
13. I have synthesized this paradigm from a number of sources, including NEUMANN, *supra* note 2, at 97-143; SHAPO ET. AL., *supra* note 10, at 113-29, and EDWARDS, *supra* note 10, at 89-108, as well as the traditional IRAC.